



CHAPTER 31

An Act to make provision as to the operation of the law in relation to Pakistan and persons and things in any way belonging to or connected with Pakistan, in view of Pakistan's becoming a Republic while remaining a member of the Commonwealth. [15th March, 1956]

WHEREAS on the twenty-third day of March, nineteen hundred and fifty-six, Pakistan is to become a Republic while remaining a member of the Commonwealth:

Be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) On and after the date of Pakistan's becoming a Republic, all existing law, that is to say, all law which, whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, is in force on that date or has been passed or made before that date and comes into force thereafter, shall, until provision to the contrary is made by an authority having power to alter that law and subject to the provisions of subsection (3) of this section, have the same operation in relation to Pakistan, and to persons and things in any way belonging to or connected with Pakistan, as it would have had if Pakistan had not become a Republic.

(2) This Act extends to law of, or of any part of, the United Kingdom, Southern Rhodesia, a colony, a protectorate or a United Kingdom trust territory:

Provided that this Act—

- (a) does not extend to any law passed by the Federal Legislature of Rhodesia and Nyasaland;

- (b) extends to other law of, or of any part of, Southern Rhodesia so far only as concerns law which can be amended neither by a law passed by the Legislature thereof nor by a law passed by the said Federal Legislature; and
- (c) extends to other law of, or of any part of, Northern Rhodesia or Nyasaland so far only as concerns law which cannot be amended by a law passed by the said Federal Legislature.

11 & 12 Geo.
6. c. 56.

The references in this subsection to a colony, to a protectorate and to a United Kingdom trust territory shall be construed as if they were references contained in the British Nationality Act, 1948.

(3) Her Majesty may by Order in Council make provision for such modification of any existing law to which this Act extends as may appear to her to be necessary or expedient in view of Pakistan's becoming a Republic while remaining a member of the Commonwealth, and subsection (1) of this section shall have effect in relation to any such law as modified by such an Order save in so far as the contrary intention appears in the Order.

An Order in Council under this section—

- (a) may be made either before or after Pakistan becomes a Republic, and may be revoked or varied by a subsequent Order in Council; and
- (b) shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Short title.

2. This Act may be cited as the Pakistan (Consequential Provision) Act, 1956.

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